



POLICE DEPARTMENT

April 14, 2008

MEMORANDUM FOR: Police Commissioner

Re: Detective Nicola Sutherland-Marrow
Tax Registry No. 917181
Internal Affairs Bureau/Group 52
Disciplinary Case Number 82805/07

The above named member of the service appeared before me on December 5, 2007
charged with the following:

1. Said Detective Nicola Sutherland-Marrow, assigned to Internal Affairs Group #52, on or about October 12, 2006, inside the Traffic Violations Bureau Courtroom, Queens County, was discourteous to a person known to this Department, in that said Detective interrupted Judge Andrew Weiss in said courtroom while he was issuing a ruling in a case involving said Detective's [REDACTED] causing said Judge to direct said Detective to leave the courtroom.

PG 203-09 Page1 Paragraph 2 - GENERAL REGULATIONS

The Department was represented by David Green, Esq., Department Advocate's Office
and the Respondent was represented by Philip Karasyk, Esq.

The Respondent, through her counsel, entered a plea of Not Guilty to the subject charges
and a stenographic transcript of the trial record has been prepared and is available for the Police
Commissioner's review.

DECISION

The Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTEDThe Department's Case

The Department called Administrative Law Judge Andrew G. Weiss, Esq. The Department also offered the out-of-court official Department interview of the Respondent, conducted on November 29, 2006. The tape and transcript were admitted into evidence as Department's Exhibits (DX) 1 and 1A. The Department further offered the tape and transcript of the traffic adjudication hearing regarding the summonses issued to the Respondent's [REDACTED] which were admitted into evidence as DX 2 and 2A (respectively).

Administrative Law Judge Andrew G. Weiss

Weiss has been employed as an Administrative Law Judge with the Traffic Adjudication Division of the New York State Department of Motor Vehicles (DMV) for fourteen years. He is currently assigned to the Queens South Violations Bureau. Prior to working for the DMV, Weiss was in private practice as an attorney for six years. Weiss testified that he presides over approximately one-hundred cases per day and takes both testimonial and documentary evidence during a hearing.

Weiss described the general layout of his courtroom as being approximately fifty feet long by fifty feet wide. Inside the court room there are benches set aside for police officers to sit. There are also benches set aside for motorist, witnesses and other individuals who attend the hearings. There is one entrance to the courtroom located towards the side of the judge's bench. He noted that the judge's bench is similar to the one in the Department's courtroom and that he sits behind the bench with his clerk. Both Weiss and his clerk have computer terminals at the bench and there is a microphone situated in front of where the judge sits. There is also a ledge

directly in front of the judge's bench where police officers, motorists and witnesses stand while presenting evidence as their case. Weiss also stated that there is a microphone on the ledge in front of those who are testifying and added that the two microphones are always on and they only record testimony related to the proceedings before him. All testimony is recorded on compact discs.

Weiss also noted that when individuals are standing in front of him at the ledge they are approximately two to three feet away from him and are permitted to remain in front of the bench after they have testified. Weiss also stated that police officers would stand to his left while the motorists, witnesses and attorneys would stand to his right.

Weiss testified that on October 12, 2006, he heard a traffic infraction case involving the Respondent' [REDACTED]. During the hearing the Respondent provided testimony on behalf of her [REDACTED] and according to Weiss, she "was making comments that were disruptive to the courtroom, to the proceeding" and he asked her to leave the courtroom, which she did.

Weiss testified that after all the testimony was in he stated to the participants "no more testimony being presented, [d]o you have anything else to say, Sir, Ma'am? No, officer? The hearing is closed." He stated that the closing of the case is "immediate." When Weiss was asked how the Respondent disrupted the proceedings, he first stated "she was making comments, and from listening to the tape of the hearing, she did say 'prejudiced' and 'He is prejudice.'" Weiss was then asked "prejudiced" or "perjured?" Weiss then replied "he perjured, he is perjuring, or perjured himself at the time. I said, please ma'am stop. Do not make these comments. Please leave the courtroom." He further explained that the Respondent disrupted his court proceedings because she was agitated throughout the entire hearing and she disagreed with the decision. "She, from her comments, would basically believe officer Kaifler was perjuring himself. She

was moving towards the side of the bench where the police officers sit. She was making some other comments some other type of gestures. At that point, she was being disruptive. I asked her to please leave the courtroom. I was at the point of saying what the findings were, if there would be any additional penalties to [REDACTED]" He added that he had approximately another thirty seconds to a minute of finishing his decision when the Respondent was acting in the manner that he described and she was not allowing him to conclude the hearing. When Weiss was asked if he remembered what the exact words that the Respondent used to disrupt the courtroom he stated, "Again, listening to the tape of the proceeding earlier today, the word prejudice or prejudiced." Once again he was questioned whether he was referring to the word prejudice or perjure and he replied "perjure." Weiss further explained that "I don't know why that word prejudice" is in my head, for some reason. Listening on the tape where he¹ said he was perjuring himself. At that point, I was asking her, the police officer, 'don't make those comments. Please leave the courtroom.' He added that he may have also said that it was inappropriate to act that way or to make such comments. He stated that at that point "she was making some other comments that I could not hear after those comments, because she was off to the side closer to the side of the courtroom." He stated that the Respondent did not immediately leave the courtroom and only did so only after he asked her to please leave. He stated that he had to ask her perhaps one to two times to leave the courtroom because she was hesitating. He stated that the Respondent's [REDACTED] apologized for her behavior and Weiss added that "listening to the tape this morning and reading the transcripts, not his exact words, I believe he said she is emotional about things that I did not do."

On cross-examination, Weiss testified that when the Respondent was testifying she was standing directly in front of the microphone at the ledge and approximately two to three feet

¹ The Court believes that Weiss was referring to the Respondent therefore this word should be "she."

away from Weiss's microphone. He acknowledged that the incident involving the Respondent was "unusual and out of the ordinary in that it does not happen everyday where he has to ask someone to leave the courtroom. Weiss reiterated that the Respondent mentioned the word perjury twice and that he heard the Respondent say those words on the tape recording of the proceeding that he listened to in the morning prior to testifying at this trial. He explained that "when I listened to the tape this morning -- as a matter of fact, I listened to it twice. She did say at the end, as I was rendering my decision and saying "guilty" and started going through the penalty phase, she said the word "perjurer, perjury" and then started to say 'he perjured, perjuring himself.'" The 'himself' started tailing off a little. That's what I heard."

Weiss acknowledged that he was interviewed by Internal Affairs investigator, Detective Rizzuti. Weiss could not recall informing Rizzuti of the word "perjury" because he did not recall the exact words of what [he] told Detective Rizzuti." He further stated that he recalled Rizzuti calling him and that there was a complaint made regarding the Respondent in this matter. He stated that he was asked what occurred and he told Detective Rizzuti "I said she was disruptive, I had to have her leave the courtroom. What I told him at that time she said, I do not recall, and I've already told you." He added that "all I do recall is that she was disruptive, and I had to have her leave the courtroom. What she said, I do not recall." Weiss further explained that "he did not recall if he (Rizzuti) asked me what did she say. I do not recall what I answered to that question, or those questions. I do recall that he asked me what occurred, I told him, and told him that she was asked to leave the courtroom. I don't recall what I told him about what she said." Weiss was then asked by the court if he recalled what the Respondent said on the day in question, prior to listening to the tape Weiss replied "those words, no, I do not, not until I heard the tape this morning."

[The Respondent then offered into evidence Respondent's Exhibit A which is Worksheet #31, of Detective Rizzuti's interview with Weiss conducted on December 18, 2006. The interview states the following: "On the above date, the I/O interviewed Judge Andrew Weiss Queens Traffic Violations regarding Detective Sutherland-Marrow's testimony. Judge Weiss expressed how unprofessional Detective Sutherland-Marrow conducted herself while in his courtroom. While Judge Weiss was reading the disposition of the summons, Detective Sutherland-Marrow was standing off to the side insulting either Police Officer Kaifler or Judge Weiss. Judge Weiss could not recall what exactly Detective Sutherland-Marrow was saying: however, Judge Weiss believed Detective Sutherland-Marrow was alleging that her [REDACTED] was found guilty because of his race. Detective Sutherland-Marrow made a statement loud enough for the courtroom to hear and Judge Weiss directed her to leave."(RXA)]

Weiss then reviewed RX A in evidence, Rizzuti's worksheet #31, and was asked if that refreshed his memory as to his interview with Rizzuti. Weiss stated that he did not recall the statement that Rizzuti recorded where Weiss told him: "Judge Weiss could not recall what exactly Detective Sutherland-Marrow was saying: however, Judge Weiss believed Detective Sutherland-Marrow was alleging that her [REDACTED] was found guilty because of his race. Detective Sutherland-Marrow made a statement loud enough for the courtroom to hear and Judge Weiss directed her to leave. Weiss stated that "What I'm saying is I do not recall telling him that I believe it was based on race. Perhaps what that could have been was those comments that Detective Sutherland-Marrow made that were not heard on the microphone may have lead me to believe that she believed it was a racial basis. It was two months after the fact. If this was written in the report I am sure I said it. Do I recall saying it, No." While Weiss could not remember the comment made to Rizzuti about race in particular, he reiterated that her comments

were loud enough to be heard. He acknowledged that nowhere in Rizzuti's report is there any reference to the term perjury. He also stated that at the time he spoke to Rizzuti he did not remember exactly what the Respondent said in the courtroom even though he made his statements two months after the event and that he previously testified that this was an unusual occurrence.

Weiss was referred to the testimony given by the Respondent during her [REDACTED]'s traffic enforcement hearing. [During her testimony, she stated to Weiss that she told officer Kaifler that she was a police officer. In response, Weiss asked her why that was relevant. The Respondent after explaining why she identified herself to Kaifler² stated that Kaifler told her "I don't care if you are a cop, I don't give a shit where you work" Weiss at this point during her testimony interrupted her and stated "excuse me, this is a court room. If you are an officer, than you know better than to use profanity in the courtroom."] (DX 2A) Weiss acknowledged that the Respondent gave him the recitation, as depicted in the transcript, of what Kaifler told her at the scene of the incident. Weiss also acknowledged that her testimony of what Kaifler told her included the word "shit" in describing what the officer said. Weiss, in taking offense to her using that word told this Court "I believe that the use of profanity would be inappropriate, yes. I would expect the witness to say, especially someone who is an officer of the court, to say there was profanity used by the officer, or by this person, without saying it directly. An officer of the court would know better to say it out right, by saying there is profanity used. Then it would [be] up to me to say what is the word, or just say profanity." When Weiss was reminded that

² During her traffic court testimony Sutherland-Marrow explained that she identified herself as a police officer to Kaifler [b]ecause I had no idea why he was approaching us in that manner. He was stopping us as if he was performing a felony stop. I was confused because we had committed no traffic violation of any sort...My only concern was to calm him down to figure out what was going on, to figure out why we were being stopped. So I immediately identified myself, I said excuse me could you please tell us why we are being stopped. He refuse to answer, he kept screaming turn the bike off, turn the bike off. I said, again I identified myself. He goes I don't care if you're a cop and I don't give a shit where you work. (DX 2A)

immediately after he admonished the Respondent for using the profanity that she stated "I apologize" he stated "if that's in the transcript."

Weiss was then asked if there was any particular point where the Respondent's behavior further angered him and he stated "it was her demeanor. She was agitated, her [REDACTED] and her [REDACTED] were agitated about the incident. Detective Sutherland-Marrow was agitated during the proceeding, her demeanor, how she was testifying. Being agitated, just the way she was -- agitated, for want of a better term. She was not being calm on how she testified." When Weiss was asked if the Respondent was nervous he replied, "no. Angry, aggravated." He then denied that the Respondent yelled in the court room or physically threatened him nor did she make any disparaging remarks towards Weiss prior to him rendering his decision. When asked if she made any faces at him he stated "I believe she did, but do I recall what they were, no. She might have had facial expressions or gestures. What they were, I do not recall." Weiss also stated that there was nowhere in the record of the hearing where he gave the Respondent any warning about her demeanor and telling her that her conduct was inappropriate outside of the use of her profanity. Weiss further testified that he did not believe the Respondent's anger was directed towards him, rather it was directed towards officer Kaifler. He stated "I don't believe it would be directed at me directly."

Weiss was then reminded about his prior testimony where he stated that as he was rendering his decision the Respondent interrupted the proceedings and caused him to lose his place and stopped his proceeding because of her behavior. Weiss replied "not lose my place. I had to stop the proceeding and ask her to leave the courtroom." When Weiss was asked if it took only a matter of seconds for the Respondent to leave the courtroom once he told her to leave he stated "I didn't have a watch to time it." He explained that "when you said 'seconds' it wasn't

instantaneous. She made two comments that were heard on the tape. She was off to the side, was making some other type of comments, which could not be heard, but she was being disruptive, and I was asking her to leave. As she made those 'perjure, perjury' comments she was walking towards the side and I asked her to leave because she was not allowing me to conclude the hearing." When he was again asked how the Respondent was being disruptive he stated "making comments, not allowing me to conclude the proceedings." He further explained that at the beginning of her comments she was by the bench then she moved off to the side and continued to make the comments. He acknowledged that when she initially made the comments she was standing in front of the bench where the microphones were and he denied that the microphones did not pick up her comments. Weiss further explained that the Respondent was in front of the bench at the initial stages of his penalty phase. He added that "[a]fter those 'perjure, perjury' comments are made she is starting to move over to the side."

[At this point in this trial a controversy arose as to when the Respondent made the statements regarding perjury. The traffic court hearing tape was played in court and the problem the court had while listening to the recording was that the Respondent's statements were somewhat muddled and difficult to hear. What was clear from the recording was that the Respondent said something about perjure or perjury and immediately after she made that statement she was told by Weiss to leave the courtroom. On further review of the traffic court hearing tape subsequent to trial, this court was able to hear in relevant part, Weiss reciting his penalty phase to wit: on page 17 line 2 "a defensive driving course would eliminate four points (inaudible) your insurance rates, as long as you haven't taken it in the last year and a half, you will be able to take it again (inaudible). Your record I do not see any prior convictions and no (inaudible)." [REDACTED] then states something that was inaudible and subsequent to that the

Respondent replies with the word "nope." And then this Court hears the word "perjury." It should be noted that this Court had to replay the recording several times to make sure what it said because her voice is low and her words are not clear on the tape. Weiss immediately stated to the Respondent "excuse me, Madame, you will now leave the room. As an officer of the court you should know not to interrupt in that respect, that manner, thank you. I'm sorry sir (inaudible). [REDACTED] then stated that she's emotional. The Court then heard what appears to be from some distance from the microphone that the Respondent may have said something to the effect "still perjury." Again the voice was very faint.

At this point this court should note that when she said this last "perjury" statement it sounded like she was in the process of walking away from the bench and she did not speak in a loud voice or give any indication of disrupting the court. It should also be noted that throughout her testimony the Respondent did not sound angry, nor did she sound agitated. Again this Court can only go by what it heard on the tape and the difficulty it had with the clarity of that recording. (DX2)]

When the Court asked Weiss if he would agree that whatever the Respondent may have said, whether it be perjure or perjury that it seems that the Judge immediately told her to leave the courtroom and Weiss acknowledged that that was a fair statement. He added that after she made the comments, he asked her to leave the courtroom. Weiss also stated that while he asked her to leave the courtroom he did not recall if she left immediately. He stated that "there might have been a delay." But he did not recall what the delay was or the amount of delay.

On re-direct examination, Weiss stated prior to his telephone interview with Rizzuti he did not listen to the tape recording of the proceeding.

The Respondent's Case

The Respondent offered the telephone interview of Weiss by Detective Nicholas Rizzuti and Rizzuti's worksheet No. 31 of that interview was admitted into evidence under Respondent's exhibit. (RX A) The Respondent testified on her own behalf.

The Respondent is an 11 ½ year member of the Department currently assigned to the Internal Affairs Bureau. She acknowledged that in October of 2006 she appeared at a Department of Motor Vehicles Hearing with respect to traffic citations that were issued to her [REDACTED]. She stated that she appeared at the DMV as a witness to the events that took place at the time that her [REDACTED] was issued the citations. At one point she was called to testify before Judge Weiss, and during her testimony she stood directly in front of him at the bench in the courtroom. She stated that where she was positioned there was a microphone that was approximately one foot away from her.

At one point during her testimony she was asked by the judge why she identified herself as a police officer at the scene of the incident. She acknowledged that during the course of giving him the answer she used the word "shit" and as a result of her using that word, Judge Weiss became "extremely incensed and angry, and reprimanded me. I immediately apologized. I told him that I was using it so he could get a sense of just how the incident occurred, and that I identified myself as a police officer to deescalate the situation" at the time of the traffic stop. The Respondent further testified that after being reprimanded by the judge she continued with her testimony but she characterized the way the judge treated her as "extremely stern. He appeared to be more and more angered. I'm not sure why."

The Respondent acknowledged that when the judge began to issue his decision she remembered him saying "the hearing is now closed." At that point she was still in front of him

up at the bench. She stated that when the judge rendered his decision she was standing directly in front of him and "he rendered his decision as guilty on all three summons. He then asked [REDACTED] about his driving record and prior convictions. I responded "nope" to the fact that he was asking if there were any prior convictions. At that time I was still standing directly in front of him. It wasn't clear who he was asking. He was just asking about his prior convictions and driving history. I believe [REDACTED] answered that he didn't have any. I said "no," responding to the question that the judge asked." After she said no she stated that she was upset and "may have been shaking my head, and I think I may have muttered under my breath, "I can't believe this." She stated that that statement was not directed at anyone and that she "didn't even realize that it came out loud." At that point she stated that the judge became extremely upset and directed me to leave the courtroom which I did immediately." As she further stated as she left the courtroom she did not say anything else to anyone but she "might have been muttering under my breath. I believe what I said was, "perjury is a felony." She stated that when she uttered those words she was walking out of the courtroom behind her [REDACTED] and was almost to the door. She stated that when she uttered the words "perjury is a felony" she was referring to the testimony that officer Kaifler the traffic officer had given in the courtroom. The Respondent further testified that prior to her quoting what officer Kaifler stated, that being the word "shit" the judge never indicated to her in anyway verbally, or non-verbally, that he had a problem with the manner in which she was conducting herself in the courtroom. She added that "he just seemed to become angry after I used that word and increasingly angry. I'm not sure what the reason was that he was upset." She added that she used the word "shit" so that the judge "could have a better sense of just how angry the officer was during the situation. To put it in context for him." She also

stated that she testified in court on numerous occasion and at no time was she ever disrespectful to the court, court officers or the people on the streets.

On cross-examination the Respondent stated that she testified in traffic court "as a witness to the facts of what occurred." In essence it was her [REDACTED] who called her as a witness to that case. She stated that officer Kaifler was standing next to her during the proceedings. She acknowledged that prior to testifying at the proceedings she believed that her [REDACTED] should not have been issued the summonses.

The Respondent stated that while she testified after Kaifler testified she was not present in the courtroom during his testimony. The Respondent acknowledged that she generated an Internal Affairs command log against Kaifler regarding the events underlying the summonses that he issued to her [REDACTED]. She stated that "that log was generated as a result of me contacting my supervisor of the incident occurring. It was automatic, and I had no control over that." When asked if the way the judge responded to her explanation of what Kaifler said whether that bothered her she stated "she was confused." But at that point the judge's response did not upset her. She was upset at the point when the judge rendered his decision and finding her [REDACTED] guilty of all the traffic infractions. She stated that "I was shaking my head in grouch disbelief. [The court observed that the Respondent "shaking her head slightly from one side to the other, with her eyes down to the floor."] She further explained that she was upset and was in a state of disbelief at the judge's decision because "anyone independent of any department any where, with no knowledge of the traffic rules, having read all three of the summons together, would have never come to that conclusion, which is why I had no reason to be upset with anyone prior to that. Never in any dream would I think that the decision would come down the way it

was. Yes I was upset. Yes, I was upset, and I muttered under my breath, "I can not believe this."

When the Respondent was asked whether it was her testimony that she used the words "perjury or perjure" or words that sounded like them after the judge rendered his decision she explained that "to the best of my recollection, it was me walking out of the courtroom. It was not directed to the judge or anyone else. I was muttering under my breath, because I was upset. She denied using the words perjurer or perjury when she was looking down and shaking her head. She further stated that she did not completely recall saying the words perjurer or perjury even once. She acknowledged that as she walked out of the courtroom after the judge directed her to leave that was when she stated "perjury is a felony." She stated however that she was not saying those words loudly. She explained "I know myself, how angry I would ever be. I would not be loud, unruly, unkept, or behave in any inappropriate manner. Do I believe anyone heard me, no. It was not directed to people in the courtroom, nor was it said to the officer's on the side, nor was it said directly to the judge, the court or anyone else." She further explained that "at no time do I believe that I was disrupting the proceeding, the court or anyone else, nor was I trying to do that, nor would I try to do that."

FINDINGS AND ANALYSIS

The Respondent is charged with being discourteous to Administrative Law Judge Andrew Weiss in that she interrupted him in the courtroom while he was issuing a ruling during a hearing involving traffic summonses that were issued to the Respondent's [REDACTED] causing the judge to direct the Respondent to leave the court room. I find the Respondent Not Guilty because the statements made by Weiss to Rizzuti, his subsequent testimony at trial and a careful

review of the traffic court hearing tape, do not, to this Court's satisfaction, support the allegations made against the Respondent.

At the outset, Weiss' memory of the events of the traffic court hearing was almost non-existent. On December 18, 2006, two months after the incident, Weiss was interviewed by Rizzuti over the telephone and Rizzuti recorded in his worksheet that "Judge Weiss expressed how unprofessional Detective Sutherland-Marrow conducted herself while in his courtroom. While Judge Weiss was reading the disposition of the summonses, Detective Sutherland-Marrow was standing off to the side insulting either Police Officer Kaifler or Judge Weiss. Judge Weiss could not recall what exactly Detective Sutherland-Marrow was saying; however, Judge Weiss believed Detective Sutherland-Marrow was alleging that her [REDACTED] was found guilty because of his race. Detective Sutherland-Marrow made a statement loud enough for the courtroom to hear and Judge Weiss directed her to leave." (RXA)

From Rizzuti's summary of the interview it appears that Weiss, just two months after telling the Respondent to leave his courtroom, was not able to articulate what the Respondent stated from memory; but he nevertheless told Rizzuti that the Respondent was standing in the courtroom and in a loud voice accused either Kaifler or Weiss of prejudice against her [REDACTED]. Weiss' impression that the Respondent was angered over "prejudice" found its way into this trial. He first testified that the Respondent "was making comments that were disruptive to the courtroom, to the proceedings" and he asked her to leave the courtroom. When he was asked how she interrupted the proceedings, he testified that the Respondent was "making comments and from listening to the tape of the hearing, she did say 'prejudiced' and 'He is prejudiced.'" It was only after he was asked if he was actually referring to the term "perjured" that he qualified his statement and replied that he really meant to say that she said "he perjured, he is perjuring, or

perjured himself at the time....” Weiss said that he then told the Respondent “please ma’am stop. Do not make these comments. Please leave the courtroom.” When he was furthered questioned as to the exact words that the Respondent used in the courtroom he stated “Again, listening to the tape of the proceeding earlier today, the word prejudice or prejudiced.” He was again questioned whether he was referring to prejudice or perjure and he replied “perjure,” and added that he did not know why “the word prejudice is in my head, for some reason.”

It is clear that Weiss was not testifying from his memory of the incident; rather, he repeatedly pointed out that his answers were coming from the traffic court’s taped recording of the hearing that he reviewed in preparation for the Department’s trial. Weiss acknowledged that he could not recall what the Respondent said prior to listening to the tape and stated “those words, no, I do not, not until I heard the tape this morning.” He also could not recall what he told Rizzuti during the interview or using the word “perjury.” He did recall telling Rizzuti “that she was asked to leave the courtroom.” But he did not “recall what [he] told him about what she said” other than “telling him that I believe it was based on race. Perhaps what that could have been was those comments that Detective Sutherland-Marrow made that were not heard on the microphone may have lead me to believe that she believed it was a racial basis. It was two months after the fact. If this was written in the report I am sure I said it. Do I recall saying it, no.”

This testimony not only raises questions about what Weiss thought he heard at the time, it also casts doubts on his claim that the Respondent’s comments were loud enough to be heard.

It is clear that Weiss became annoyed with the Respondent when she was quoting Kaifler’s words to her at the scene stating, “He (Kaifler) goes I don’t care if you’re a cop and I don’t give a shit where you work.” Weiss scolded her by saying “Excuse me this is a courtroom.

If you are an officer, than you know better than to use profanity in the courtroom.” (DX2A)

While this Court has no intention of judging Weiss’s courtroom requirements, it is aware that courts in general will permit profanity when it relates to the accuracy of testimony quoting what someone said. Unless the Respondent was given prior notice not to use profanity under any circumstances during the traffic court hearing, this Court cannot fault her for attempting to quote Kaifler as accurately as possible. In this Court’s opinion, the Respondent, at the request of Weiss, was merely describing what she claimed had occurred.

Because Weiss testified primarily from what he heard on the tape of the hearing and because the tape contains virtually all of the subject matter of this case, considerable weight is given by this Court to the content of the tape in forming its opinion.

It is abundantly clear from the recording that the Respondent was courteous to Weiss throughout the proceeding; she never raised her voice to Weiss or anyone else in the courtroom and apologized when Weiss scolded her for using profanity. The Respondent during the closing moments of the hearing answered “nope” in response to Weiss’ inquiry about her [REDACTED]’s prior traffic record, but in the context of what seemed to be happening at that moment the word “nope” does not seem inappropriate and it was said in a calm and pleasant voice. While it is true that the Respondent said something that sounded like “perjure” or “perjury” it was so low and so faint that this Court had to listen to the tape repeatedly to make it out. Immediately after making that statement she was told by Weiss, “excuse me, Madame; you will now leave the room. As an officer of the court you should know not to interrupt in that respect, that manner, thank you.” She again can be faintly heard to say “still perjury.”

In is this Court’s opinion when the Respondent used the terms “perjury” and “still perjury” she was no longer near the court’s microphones and very likely walking towards the

exit of the courtroom (as she testified). This fact is apparent because her voice was very difficult to hear. She was not talking loudly or shouting across the courtroom, as Weiss apparently claimed in his discussion with Rizzuti, and her words were not said in a disruptive fashion. It is also apparent that Weiss believed that she was accusing him or the proceeding of being prejudice because his statement to Rizzuti and his initial testimony clearly indicate that he perceived her to say that the decision was based on race. This, of course, was not what the Respondent said. But Weiss' misunderstanding; his apparent belief that he was being accused of racial bias, appears to have caused him to quickly and firmly react.

This Court is, for obvious reasons, very concerned about courtroom decorum no matter what the tribunal. Certainly it would have been preferable if the Respondent had made no comment in the courtroom following the hearing officer's ruling. However, a full review of the events, as recorded on the taped trial record, indicate that no actionable misconduct occurred.

Accordingly, the Respondent is found Not Guilty.

APPROVED

RAYMOND A. KELLY
POLICE COMMISSIONER

Respectfully submitted,

John Grappone
Assistant Deputy Commissioner - Trials